The contention arises because the Pahari group is more properly a linguistic classification than an ethnic one. Numbering around 1 million (Census 2011), they include many who were displaced from Pakistan-occupied Kashmir, and encompass privileged-caste Syed Muslims, besides Brahmin Hindus as also Sikhs in Jammu's Poonch and Rajouri districts—groups who fare much better economically compared to the Gujjars and Bakerwals. Gadda Brahmins and Kolis are predominantly Hindu communities inhabiting Jammu's Udhampur, Kathua and Ramban districts. The Paddari tribe, with a population of around 22,000, hails from the remote Paddar area in Kishtwar district. They predominantly practise Hinduism, followed by Buddhism and Islam.

A UNION GOVT BILL TO INCLUDE THE PAHARIS AND THREE OTHER COMMUNITIES IN J&K'S ST LIST HAS SPARKED PROTEST FROM THE GUJJAR-BAKERWAL TRIBAL GROUPS

Ironically, the inclusion of Paharis within the reserved category alongside Gujjars and Bakerwals has been a longstanding demand backed by all political parties. In 1989, the National Conference (NC)-Congress government had proposed it, but the Registrar General of India denied the request, citing a lack of recognition of Paharis as a caste or tribe in official records. Subsequent attempts in 2014 and 2018 faced gubernatorial hurdles. However, the Modi government has now enacted amendments to the Jammu and Kashmir Reservation Rules, 2005, in one comprehensive action, thereby proposing a 4 per cent reservation for Paharis in government jobs and education. At present, STs enjoy a 10 per cent reservation.

The parliamentary move has exacerbated the pre-existing divide between Gujjars and Paharis, pitting the two communities that coexist geographically but remain culturally and identifiably distinct. Gujjars and Bakerwals are pastoral nomad Muslims who sell milk for their livelihood and annually migrate along with their livestock from the plains in Jammu to pasturelands in Kashmir's mountains and vice versa. With a population of 1.1 million, they are J&K's third-largest ethnic group after the Kashmiris and Dogras. They were granted ST status in 1991, alongside the Dard Shins, Sippis and Gaddis—numbering 200,000. But a promise made by Union home minister Amit Shah in October 2022 that the Paharis, too, would be included in the ST list became the first sign that things could change soon. With an election overdue since 2014, this is not just a theoretical or even socio-economic question. The electoral significance of both Paharis and Gujjars has grown. Their substantial populations in districts like Rajouri and Poonch could significantly influence voting outcomes in favour of the BJP. This contrasts with historical voting trends where the mountainous region largely supported the NC. In 2014, however, the Peoples Democratic Party (PDP) secured three seats, BJP two, and the NC and Congress one each, shifting the political dynamics.

In the 90-member J&K assembly, nine seats are reserved for STs. Of the ST constituencies, six are in the Anantnag-Rajouri parliamentary constituency. They include Rajouri, Thanamandi, Budhal, Suronkote and Mendhar in the Poonch district and Kokernag in the Anantnag district. The rest are Gurez and Kangan in Kashmir and Gulabgarh in Jammu.

Young Gujjar-Bakerwal leader Talib Hussain, part of the PDP, attributes this policy move to the BJP's desire for electoral gains, and believes it dilutes the concept of 'tribe' by relaxing the qualifying criteria. The community leaders have submitted memorandums to the Centre and the President seeking the withdrawal of the bill. "Paharis are non-tribal privileged caste people. The BJP's only aim is to gain maximum seats. For this, they are creating a situation like Manipur here by pitting Muslims against Muslims. They want the Paharis to fight against the Gujjars and create tension here," says Hussain, who spearheaded the campaign against the perpetrators of the horrific Kathua rape and murder case in 2018. "We are holding protests in each district to raise awareness and press for withdrawal of the bill."

Before the introduction of the bill, Shah had assured a delegation of Gujjars on July 25 in New Delhi that their interests would be safeguarded. But the commitment did not allay apprehensions. On the contrary, they may have sharpened after senior BJP leader Vibodh Gupta, a Pahari too, met Shah on the same day. Gupta contends that Pahari-speaking people deserve reservation rights previously denied to them. He emphasises that they share common ground with Gujjars and Bakerwals, both enduring geographical isolation and possessing unique cultures. "There are several misconceptions. We won't eat up the reservation meant for the Gujjars but will have a separate quota," clarifies the former member of the legislative council.

As communal undertones dominate the political discourse in the already strife-torn region, the Centre will have to ensure that the situation does not flare up further. ■